

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

SECTION B - Supplies or Services/Prices	4
ARTICLE B.1. BRIEF DESCRIPTION OF SUPPLIES OR SERVICES	4
ARTICLE B.2. PRICES	4
ARTICLE B.3. OPTION PRICES	4
SECTION C - Description/Specifications.....	5
ARTICLE C.1. STATEMENT OF WORK.....	5
ARTICLE C.2. REPORTING REQUIREMENTS	5
ARTICLE C.3. INVENTION REPORTING REQUIREMENT	10
SECTION D - Packaging and Marking	10
SECTION E - Inspection and Acceptance.....	11
SECTION F - DELIVERIES OR PERFORMANCE	11
ARTICLE F.1. PERIOD OF PERFORMANCE	11
ARTICLE F.2. CLAUSES INCORPORATED BY REFERENCE, FAR 52.252-2 (FEBRUARY 1998)	12
SECTION G - Contract Administration Data	12
ARTICLE G.1. CONTRACTING OFFICER REPRESENTATIVE (COR).....	12
ARTICLE G.3. INVOICE SUBMISSION/CONTRACT FINANCING REQUEST AND CONTRACT FINANCIAL REPORT	13
ARTICLE G.4. POST AWARD EVALUATION OF CONTRACTOR PERFORMANCE	14
SECTION H - Special Contract Requirements.....	15
ARTICLE H.1. HUMAN SUBJECTS	15
ARTICLE H.2. NIH POLICY ON ENHANCING REPRODUCIBILITY THROUGH RIGOR AND TRANSPARENCY	15
ARTICLE H.3. NIH POLICY ON ENHANCING PUBLIC ACCESS TO ARCHIVED PUBLICATIONS RESULTING FROM NIH-FUNDED RESEARCH	15
ARTICLE H.4. DUAL USE RESEARCH OF CONCERN.....	15
ARTICLE H.5. ACKNOWLEDGEMENT OF FEDERAL FUNDING.....	16
ARTICLE H.6. DISSEMINATION OF FALSE OR DELIBERATELY MISLEADING INFORMATION.....	16
ARTICLE H.7. PRIVACY ACT, HHSAR 352.224-70 (December 2015).....	16
ARTICLE H.8. OMB CLEARANCE.....	17
ARTICLE H.9. RESTRICTION ON PORNOGRAPHY ON COMPUTER NETWORKS.....	17
ARTICLE H.10. GUN CONTROL.....	17
ARTICLE H.11. OPTION PROVISION	17
ARTICLE H.12. SUBCONTRACTING PROVISIONS.....	17

ARTICLE H.13. INFORMATION SYSTEM DESIGN AND DEVELOPMENT, HHSAR 352.239-73 (FEB 2024) (DEVIATION).....	19
ARTICLE H.14. INFORMATION SYSTEM HOSTING, OPERATIONS, MAINTENANCE, OR USE, HHSAR 352.239-74 (FEB 2024) (DEVIATION).	19
ARTICLE H.15. COMMUNICATIONS MATERIALS AND SERVICES	22
ARTICLE H.16. RESPONSIBILITIES OF INSTITUTIONS REGARDING INVESTIGATOR FINANCIAL CONFLICTS OF INTEREST	23
ARTICLE H.17. PUBLICATION AND PUBLICITY	30
ARTICLE H.18. REPORTING MATTERS INVOLVING FRAUD, WASTE AND ABUSE	31
ARTICLE H.19. OBTAINING AND DISSEMINATING BIOMEDICAL RESEARCH RESOURCES.....	31
ARTICLE H.20. SHARING RESEARCH DATA	31
ARTICLE H.21. POSSESSION USE AND TRANSFER OF SELECT BIOLOGICAL AGENTS OR TOXINS	32
ARTICLE H.22. HIGHLY PATHOGENIC AGENTS	33
ARTICLE H.23. HOTEL AND MOTEL FIRE SAFETY ACT OF 1990 (P.L. 101-391)	34
ARTICLE H.24. PROHIBITION ON CONTRACTOR INVOLVEMENT WITH TERRORIST ACTIVITIES	34
ARTICLE H.25. CONSTITUTION DAY.....	34
ARTICLE H.26. USE OF FUNDS FOR CONFERENCES, MEETINGS AND FOOD.....	34
ARTICLE H.28. GUIDELINES FOR INCLUSION OF WOMEN, MINORITIES, AND PERSONS WITH DISABILITIES IN NIH-SUPPORTED CONFERENCES	34
ARTICLE H.29. USE OF FUNDS FOR PROMOTIONAL ITEMS.....	35
SECTION I - Contract Clauses	36
ARTICLE 1. GENERAL CLAUSES	36
ARTICLE 2. AUTHORIZED SUBSTITUTION OF CLAUSES.....	39
ARTICLE 3. ADDITIONAL CONTRACT CLAUSES IN FULL TEXT	40
ARTICLE 4. SMALL BUSINESS ADMINISTRATION - 8(a) PROGRAM CLAUSES.....	41
ARTICLE 5. SERVICE CONTRACT LABOR STANDARDS	41
SECTION J - List of Documents, Exhibits and Other Attachments	42
SECTION K - Representations, Certifications, and Other Statements of Bidders	43
SECTION L - Instructions, Conditions, and Notices to Bidders.....	44
SECTION M - Evaluation Factors for Award	50

PART I - THE SCHEDULE

THE INFORMATION SET FORTH IN **SECTION A - SOLICITATION** HEREIN CONTAINS IMPORTANT INFORMATION FOR ANY OFFEROR INTERESTED IN RESPONDING TO THIS SOLICITATION. ANY CONTRACT RESULTING FROM THIS SOLICITATION WILL INCLUDE IN ITS **SECTION A – SOLICITATION** , ACCOUNTING, APPROPRIATION AND GENERAL INFORMATION APPLICABLE TO THE CONTRACT AWARD.

THE CONTRACT SCHEDULE SET FORTH IN **SECTIONS B THROUGH H**, HEREIN, CONTAINS CONTRACTUAL INFORMATION PERTINENT TO THIS SOLICITATION. IT IS NOT AN EXACT REPRESENTATION OF THE CONTRACT DOCUMENT THAT WILL BE AWARDED AS A RESULT OF THIS SOLICITATION. THE CONTRACT COST OR PRICE AND OTHER CONTRACTUAL PROVISIONS PERTINENT TO THE OFFEROR (i.e., those relating to the organizational structure [e.g., Non-Profit, Commercial] and specific cost authorizations unique to the Offeror's proposal and requiring Contracting Officer Prior Approval) WILL BE DISCUSSED IN THE NEGOTIATION PROCESS AND WILL BE INCLUDED IN THE RESULTANT CONTRACT. THE ENCLOSED CONTRACT SCHEDULE IS INTENDED TO PROVIDE THE OFFEROR WITH THE NECESSARY INFORMATION TO UNDERSTAND THE TERMS AND CONDITIONS OF THE RESULTANT CONTRACT.

SECTION B - Supplies or Services/Prices

ARTICLE B.1. BRIEF DESCRIPTION OF SUPPLIES OR SERVICES

The aim of this solicitation is to continue the Chemistry Center for Combating Antibiotic-Resistant Bacteria (CC4CARB) responsible for coordinating and conducting the design, synthesis, in vitro testing, and distribution of chemical libraries of discrete small-molecules with diverse physicochemical properties, specifically designed to target Gram-negative bacterial pathogens and other antibiotic-resistant bacteria identified as Antimicrobial Resistance threats.

ARTICLE B.2. PRICES

The final contract will contain the price provisions agreed upon by the Government and the Offeror. Please see the excel pricing sheets located under CC4CARB Pricing Sheet (excel file).

ARTICLE B.3. OPTION PRICES

- a. Unless the Government exercises its option pursuant to the option clause referenced in ARTICLE I.3. ADDITIONAL CONTRACT CLAUSES, this contract consists only of the Base Period specified in the Statement of Work as defined in SECTIONS C and F, for the price set forth in ARTICLE B.2. of this contract.
- b. Pursuant to **FAR Clause 52.217-9/Option to Extend** set forth in ARTICLE I.3. ADDITIONAL CONTRACT CLAUSES of this contract, the Government may, by unilateral contract modification, require the Contractor to perform the Option Period(s) specified in the Statement of Work as defined in SECTIONS C and F of this contract. If the Government exercises this/these option(s), notice must be given before the expiration date of the contract. Specific information regarding the time frame for this notice is set forth in the OPTION PROVISION Article in SECTION H of this contract. The fixed price of this contract will be increased as set forth in paragraph c., below.

- c. Upon the delivery and acceptance of the [Option Item/Option Items/Option Service/Option Services] described in SECTION C of the contract and identified in the schedule of charges below, the Government shall pay the Contractor the unit price(s) set forth on the price sheet provided.

The option(s) are to be priced separately and will be evaluated prior to award. In accordance with FAR 52.217-5, Evaluation of Options, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

SECTION C - Description/Specifications

ARTICLE C.1. STATEMENT OF WORK

Independently and not as an agent of the Government, the Contractor shall be required to furnish all the necessary services, qualified personnel, material, equipment, and facilities, not otherwise provided by the Government, as needed to perform the Statement of Work, dated 01/02/2025, attached hereto and made a part of this Solicitation (See SECTION J - List of Attachments).

ARTICLE C.2. REPORTING REQUIREMENTS

All reports required herein shall be submitted in electronic format. All electronic contract deliverables shall be submitted via NIAID electronic Report Deliverable Submission (eRDS) site, available at the following website: <https://erds.niaid.nih.gov/>. All electronic reports submitted shall be compliant with Section 508 of the Rehabilitation Act of 1973. Additional information about testing documents for Section 508 compliance, including guidance and specific checklists, by application, can be found at: <http://www.hhs.gov/web/508/index.html> under "Making Files Accessible."

A. Technical Reports

In addition to the required reports set forth elsewhere in this Schedule, the preparation and submission of regularly recurring Technical Progress Reports will be required in any contract resulting from this solicitation. These reports will require descriptive information about the activities undertaken during the reporting period and will require information about planned activities for future reporting periods. The frequency and specific content of these reports will be determined prior to contract award. The Contractor shall include the applicable PubMed Central or NIH Manuscript Submission reference number when citing publications that arise from its NIH funded research.

NOTE: For proposal preparation purposes only, it is estimated that the following reports will be required in electronic format:

1. Meeting Agenda and Minutes

The Contractor shall email the agenda of each planned meeting with NIAID to all NIAID participants one (1) business day in advance of the meeting. The Contractor shall submit minutes and presentation materials within three (3) business days of each meeting. Minutes must include date, time, and

location of the meeting, attendance, details of all discussion including questions asked and answers, and action items.

2. Individual Library Production Plan (ILPP)

The Contractor shall generate an ILPP for each Library Design. The ILPP describes the overall project plan to produce a library of approximately 80 compounds derived from a novel chemical scaffold or otherwise representative of novel chemical space for antibacterial agents. The ILPP should be designated as either low complexity or high complexity per the definitions provided (see Attachment 1 - SOW). An ILPP may propose more or fewer than 80 compounds to allow for unanticipated chemistry failures or chemistry anticipated to have greater risk of failure, particularly in the case of high complexity libraries. An ILPP may propose rules for ad-hoc addition of unspecified compounds without prior COR approval. No more than 40 additional compounds may be added using ad-hoc rules and no more than 120 compounds total may be tested or invoiced per ILPP without concurrence of the COR. The ILPP will be reviewed by the COR prior to initiation of chemical synthesis, which may not commence without written concurrence of the COR. The date of COR concurrence will establish the embargo period (see Attachment 1 - SOW) start date for all compounds in the ILPP, including any compounds added (via ad-hoc rules) at a later date. The Contractor is encouraged, but not required, to discuss the ILPP plan with the COR in advance of requesting concurrence of an ILPP. An ILPP may not be amended once it has been concurred by the COR. Rather, in the event a significant technical revision is required, the Contractor shall close the ILPP and create a new one containing the necessary revisions. The Contractor shall include the following in each ILPP:

- A brief summary of the rationale and background information

- A designation of whether the ILPP is low or high complexity

- A structure of the core scaffold and scheme(s) for elaboration into the proposed library

- A table of targeted products with calculated physicochemical properties for each product

- Synthetic routes with relevant supporting literature references

- A timeline and/or Gantt chart of key activities

- Optional ad-hoc rules: A framework of rules for defining additional ad-hoc products should they be needed to complete the ILPP. Including this framework allows the Contractor to synthesize additional products that were not initially proposed, without advance COR concurrence, but which support the goals of the ILPP.

An ILPP is complete when one of the following criteria is met: (1) The maximum number of target compounds in the ILPP have been completed, or the Contractor has determined no additional compounds can be completed for any reason; (2) the COR determines the ILPP is complete and communicates the determination to the Contractor in writing; or (3) the current term of the contract expires. If a continuing term option has been awarded, the Contractor may roll-over some or all targets from a previous ILPP into a new ILPP for the new contract term. An ILPP concurred by the COR in one performance period may not continue into the next performance period. This is to allow the Contractor to invoice a partially completed ILPP to the performance period in which the work was done. Otherwise, all delivered compounds are invoiced to the performance period in which the ILPP was completed regardless of when work on the ILPP compounds started.

In all cases, a completed ILPP may only be invoiced after the COR has accepted an Individual Library Production Plan Report (ILPP-R) for the ILPP.

3. Individual Library Production Plan Report (ILPP-R)

The Contractor shall submit an ILPP Report (ILPP-R) within 30 days of the date the ILPP was completed, unless notified otherwise by the COR. An ILPP-R must be submitted and accepted by the COR before compounds produced under the ILPP may be invoiced by the Contractor. This report describes the results achieved during production of the ILPP. The report should include a status for each proposed target in a table including, at minimum, whether the target was attempted, succeeded (or failed), and what quantity of each storage form (solid, liquid) is now available. Technical problems encountered should be included along with a brief discussion of resolutions. If an outside collaborator was involved, discussion of the impact on the collaborator's program should be included. An ILPP-R submission must be accompanied by special appendices provided as separate electronic files as detailed below:

Appendix A. Experimental Procedures – A document containing text experimental procedures for all compounds in a format acceptable for publication in a common high impact chemistry journal (such as *Journal of American Chemical Society*). Generalized procedures may be provided where the same reaction was performed multiple times, varying only reactants employed. Graphical spectra supporting experimental conclusions must be provided for key intermediates and all final compounds.

4. Singleton Synthesis Report (SSR)

The Contractor shall submit a Singleton Synthesis Report (SSR) within 30 days of completion of a singleton synthesis requested by the COR. An SSR must be submitted and accepted by the COR before a singleton synthesis may be invoiced by the Contractor. The report may include more than one singleton synthesis provided the reported syntheses are related by either deriving from the same ILPP or using substantially the same synthetic route. This report includes a reference to the ILPP from which the singleton was derived and describes the results achieved during production of the singleton. Technical problems encountered should be included along with a brief discussion of resolutions. An SSR submission must include experimental procedures specific to the singleton synthesis undertaken, including text experimental procedures in a format acceptable for publication in a common high impact chemistry journal (such as *Journal of American Chemical Society*) and graphical spectra supporting experimental conclusions must be provided for key intermediates and the final compound.

5. Compound Testing Report (CTR)

The Contractor shall submit a Compound Testing Report (CTR) within 15 calendar days of completion of an MIC panel run. A CTR must be submitted and accepted by the COR before invoicing for the corresponding MICs by the Contractor. This report includes a reference to the ILPP(s) from which the tested compounds derived and describes the results achieved during the MIC testing. At minimum, the report should include a general description of the panel organisms and testing protocol and a table of MIC results in ug/mL units for each compound against each panel organism.

Technical problems encountered should be included along with a brief discussion of resolutions. If a subcontractor performed the MICs, the subcontractor final report may be submitted in lieu of a CTR, provided it includes the required information.

6. Monthly Progress Report

The contractor shall submit a Monthly Progress Report by the 15th of each month following the reporting period, except as noted. The first Monthly Progress Report is due on the 15th of the second full month of the contract, covering a performance period from the contract award date to the end of the first full month of the contract. Thereafter, the reporting period is each calendar month. In a month when the Annual Progress Report is due, the Monthly Progress Report is not due, however, the content of that month's performance should be incorporated into the Annual Progress Report. The Monthly Progress Report should be concise and will include a description of the activities during the reporting period organized into the following sections:

- Title Page
- Executive Summary
- Library Ideas in Development
- Active ILPP Status
- Compound Testing
- Compound Management

7. Annual Progress Report

The Contractor shall submit an Annual Progress Report by the 15th of the month following the end of the reporting period. The Annual Progress Report provides a summation of the results of one performance year. The format of the Annual Progress Report must closely follow the format established for the Monthly Progress Report except covering the scope of one performance year and including a section reporting the results of monitoring the integrity of the compound collection. The Annual Progress Report shall include the following sections:

- Title Page
- Executive Summary
- Library Ideas in Development
- Completed ILPPs
- Compound Testing
- Compound Management
- Compound Collection Integrity

The Annual Report submission must be accompanied by an appendix provided as a separate electronic file as described below:

Appendix A. Compound Table - An Excel table containing one row for each completed compound and columns reporting compound structure (ie SMILES), MIC data, compound inventory information, physicochemical properties, and other relevant per compound data.

8. Final Report

The Contractor shall submit a final report by the last day of the contract. The Contractor shall complete the Annual Report for the final contract year before completing the Final Report. The Final Report must then collate the Annual reports as follows:

Title Page
Executive Summary
Full budget Summary
Annual Report Year 1
Annual Report Years 2 - 8, if exercised.

The Final Report submission must be accompanied by an appendix provided as a separate electronic file as described below:

Appendix A. Compound Table - An Excel table containing one row for each completed compound and columns reporting compound testing data, compound inventory information, physicochemical properties, and other relevant per compound data in the same format as provided for the Annual Report Compound Table.

B. Other Reports/Deliverables

1. Reporting of Financial Conflict of Interest (FCOI)

All reports and documentation required by 45 CFR Part 94, Responsible Prospective Contractors including, but not limited to, the New FCOI Report, Annual FCOI Report, Revised FCOI Report, and the Mitigation Report, shall be submitted to the Contracting Officer in [Electronic/Hard Copy] format. Thereafter, reports shall be due in accordance with the regulatory compliance requirements in 45 CFR Part 94. 45 CFR Part 94 is available at:
<https://www.ecfr.gov/current/title-45/part-94>.

See Part 94.5, Responsibilities of Institutions regarding Investigator financial conflicts of interest for complete information on reporting requirements.

(Reference the INSTITUTIONAL RESPONSIBILITY REGARDING INVESTIGATOR FINANCIAL CONFLICTS OF INTEREST Article in SECTION H of this contract.)

2. Section 508 Annual Report

The Contractor must submit an annual Section 508 report in accordance with the schedule set forth by the Contracting Officer (CO)/Contracting Officer's Representative (COR). The Section 508 Report Template and Instructions for completing the report are available at:
https://www.hhs.gov/sites/default/files/web/508/contracting/technology/section_508_annual_report.doc.

3. REPORTING REQUIREMENTS FOR USE WITH THE ELECTRONIC REPORT DELIVERABLE SUBMISSION (eRDS) SITE

All reports required herein must be submitted in electronic format. All electronic contract deliverables must be submitted via the NIAID electronic Report Deliverable Submission (eRDS) Site, available at the following website: <https://erds.niaid.nih.gov/>. All electronic reports submitted must be compliant with Section 508 of the Rehabilitation Act of 1973. Additional information about testing documents for Section 508 compliance, including guidance and specific checklists, by application, can be found at <https://www.hhs.gov/web/section-508/index.html> and at: <https://www.section508.gov/create/documents>, 'Create Accessible Documents.'

ARTICLE C.3. INVENTION REPORTING REQUIREMENT

All reports and documentation required by [FAR Clause 52.227-11, Patent Rights-Ownership by the Contractor/FAR Clause 52.227-13, Patent Rights-Ownership by the Government] including, but not limited to, the invention disclosure report, the confirmatory license, and the Government support certification, shall be directed to the Division of Extramural Inventions and Technology Resources (DEITR), OPERA, OER, NIH, 6705 Rockledge Drive, Suite 310, MSC 7980, Bethesda, Maryland 20892-7980 (Telephone: 301-435-1986). In addition, one copy of an annual utilization report, and a copy of the final invention statement, shall be submitted to the Contracting Officer. The final invention statement (see FAR 27.303(b)(2)(ii)) shall be submitted to the Contracting Officer on the expiration date of the contract.

The annual utilization report shall be submitted in accordance with the DELIVERIES Article in SECTION F of this contract. Thereafter, reports shall be due on or before the 15th Calendar day following the reporting period. The final invention statement (see FAR 27.303(b)(2)(ii)) shall be submitted on the expiration date of the contract. **All reports shall be sent to the COR and CO identified in the awarded contract via email.**

If no invention is disclosed or no activity has occurred on a previously disclosed invention during the applicable reporting period, a negative report shall be submitted to the Contracting Officer at the address listed above.

To assist contractors in complying with invention reporting requirements of the clause, the NIH has developed "Interagency Edison," an electronic invention reporting system. Use of Interagency Edison is required as it streamlines the reporting process and greatly reduces paperwork. Access to the system is through a secure interactive Web site to ensure that all information submitted is protected. Interagency Edison and information relating to the capabilities of the system can be obtained from the Web (<http://www.iedison.gov>), or by contacting the Extramural Inventions and Technology Resources Branch, OPERA, NIH.

SECTION D - Packaging and Marking

A. PACKAGING, MARKING, AND SHIPPING

Not Required.

SECTION E - Inspection and Acceptance

- a. The Contracting Officer or the duly authorized representative will perform inspection and acceptance of materials and services to be provided.
- b. For the purpose of this SECTION, the Contracting Officer's Representative (COR) is the authorized representative of the Contracting Officer.
- c. Inspection and acceptance will be performed at:

National Institute of Allergy and Infectious Diseases
National Institutes of Health
5601 Fishers Lane, MSC 9821
Bethesda, MD 20892-9821

Acceptance may be presumed unless otherwise indicated in writing by the Contracting Officer or the duly authorized representative within 30 days of receipt.

- d. This contract incorporates the following clause by reference, with the same force and effect as if it were given in full text. Upon request, the Contracting Officer will make its full text available.

FAR Clause 52.246-2, Inspection of Supplies - Fixed Price (August 1996).

FAR Clause 52.246-4, Inspection of Services - Fixed Price (August 1996).

FAR Clause 52.246-7, Inspection of Research and Development - Fixed Price (August 1996).

SECTION F - DELIVERIES OR PERFORMANCE

ARTICLE F.1. PERIOD OF PERFORMANCE

- a. The anticipated period of performance of the base period of this contract is February 1, 2027 through January 31, 2028.
- b. If the Government exercises its option(s) pursuant to the OPTION PROVISION Article in Section H of this contract, the period of performance will be increased as listed below:

Option	Option Period
Term Option Period A-1	February 1, 2028 through January 31, 2029
Term Option Period A-2	February 1, 2029 through January 31, 2030
Term Option Period A-3	February 1, 2030 through January 31, 2031
Term Option Period A-4	February 1, 2031 through January 31, 2032
Term Option Period A-5	February 1, 2032 through January 31, 2033
Term Option Period A-6	February 1, 2033 through January 31, 2034

Term Option Period A-7	February 1, 2034 through January 31, 2035
------------------------	---

Quantity Options shall run concurrently with the contract period in which they are exercised. Quantity Options shall not exceed the period of performance of the contract period in which they are exercised.

ARTICLE F.2. CLAUSES INCORPORATED BY REFERENCE, FAR 52.252-2 (FEBRUARY 1998)

This contract incorporates the following clause(s) by reference, with the same force and effect as if it were given in full text. Upon request, the Contracting Officer will make its full text available. Also, the full text of a clause may be accessed electronically at this address: <https://www.acquisition.gov/?q=browsefar>.

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSE:

52.242-15, Stop Work Order (August 1989)

Alternate I (April 1984) is not applicable to this contract.

52.247-35, F.o.b. Destination Within Consignees Premises (April 1984).

52.242-17, Government Delay of Work (April 1984).

SECTION G - Contract Administration Data

ARTICLE G.1. CONTRACTING OFFICER REPRESENTATIVE (COR)

The following Contracting Officer Representative (COR) will represent the Government for the purpose of this contract:

TBD

The COR is responsible for: (1) monitoring the Contractor's technical progress, including the surveillance and assessment of performance and recommending to the Contracting Officer changes in requirements; (2) interpreting the statement of work and any other technical performance requirements; (3) performing technical evaluation as required; (4) performing technical inspections and acceptances required by this contract; and (5) assisting in the resolution of technical problems encountered during performance.

The Contracting Officer is the only person with authority to act as agent of the Government under this contract. Only the Contracting Officer has authority to: (1) direct or negotiate any changes in the statement of work; (2) modify or extend the period of performance; (3) change the delivery schedule; (4) authorize reimbursement to the Contractor for any costs incurred during the performance of this contract; (5) otherwise change any terms and conditions of this contract; or (6) sign written licensing agreements. Any signed agreement shall be incorporated by reference in Section K of the contract

The Government may unilaterally change its COR designation.

ARTICLE G.2. KEY PERSONNEL, HHSAR 352.237-75 (December 2015)

The key personnel specified in this contract are considered to be essential to work performance. At least 30 days prior to the contractor voluntarily diverting any of the specified individuals to other programs or contracts the Contractor shall notify the Contracting Officer and shall submit a justification for the diversion or replacement and a request to replace the individual. The request must identify the proposed replacement and provide an explanation of how the replacement's skills, experience, and credentials meet or exceed the requirements of the contract (including, when applicable, Human Subjects Testing requirements). If the employee of the contractor is terminated for cause or separates from the contractor voluntarily with less than thirty days notice, the Contractor shall provide the maximum notice practicable under the circumstances. The Contractor shall not divert, replace, or announce any such change to key personnel without the written consent of the Contracting Officer. The contract will be modified to add or delete key personnel as necessary to reflect the agreement of the parties.

(End of Clause)

The following individual(s) is/are considered to be essential to the work being performed hereunder:

Name	Title

ARTICLE G.3. INVOICE SUBMISSION/CONTRACT FINANCING REQUEST AND CONTRACT FINANCIAL REPORT

1. The Contractor must submit invoices to the Department of Treasury's Invoice Processing Platform (IPP) at <https://www.ipp.gov> with a copy of the invoice to the approving official, as directed below.
2. In addition to the requirements specified in FAR 32.905 for a proper invoice, the Contractor shall include the following information on the face page of all payment requests:
 - a. Name of the Office of Acquisitions. The Office of Acquisitions for this contract is **NIAID, NIH**.
 - b. Federal Taxpayer Identification Number (TIN). If the Contractor does not have a valid TIN, it shall identify the Vendor Identification Number (VIN) on the payment request. The VIN is the number that appears after the Contractor's name on the face page of the contract. *[Note: A VIN is assigned to new contracts awarded on or after June 4, 2007, and any existing contract modified to include the VIN number.]* If the Contractor has neither a TIN, Unique Entity Identifier (UEI), or VIN, contact the Contracting Officer. Note: The Contractor shall not include TIN if it is a Social Security Number.
 - c. Unique Entity Identifier (UEI). The UEI is located in the System for Award Management (SAM) and replaces the Dun & Bradstreet Data Universal Numbering System (DUNS) number. The UEI number must identify the Contractor's name and

address exactly as stated in the contract and as registered in the Central Contractor Registration (CCR) database. If the Contractor does not have a valid UEI number, it shall identify the Vendor Identification Number (VIN) on the payment request. The VIN is the number that appears after the Contractor's name on the face page of the contract.

[Note: A VIN is assigned to new contracts awarded on or after June 4, 2007, and any existing contract modified to include the VIN number.] If the Contractor has neither a TIN, UEI, or VIN, contact the Contracting Officer.

d. Invoice Matching Option. This contract requires a two-way match.

e. Unique Invoice Number. Each payment request must be identified by a unique invoice number, which can only be used one time regardless of the number of contracts or orders held by an organization.

f. The Contract Title is: **Chemistry Center for Combating Antibiotic-Resistant Bacteria (CC4CARB)**

3. The Contractor shall include the following certification on every invoice for reimbursable costs incurred with Fiscal Year funds subject to HHSAR Clause 352.231-70, Salary Rate Limitation in SECTION I of this contract. For billing purposes, certified invoices are required for the billing period during which the applicable Fiscal Year funds were initially charged through the final billing period utilizing the applicable Fiscal Year funds:

"I hereby certify that the salaries charged in this invoice are in compliance with HHSAR Clause 352.231-70, Salary Rate Limitation in SECTION I of the above referenced contract."

ARTICLE G.4. POST AWARD EVALUATION OF CONTRACTOR PERFORMANCE

a. Contractor Performance Evaluations

Interim and Final evaluations of Contractor performance will be prepared on this contract in accordance with FAR Subpart 42.15. The Final performance evaluation will be prepared at the time of completion of work. In addition to the Final evaluation, Interim evaluation(s) will be prepared Annually at 12-month intervals after award.

Interim and Final evaluations will be provided to the Contractor as soon as practicable after completion of the evaluation. The Contractor will be permitted sixty days to review the document and to submit additional information or a rebutting statement. If agreement cannot be reached between the parties, the matter will be referred to an individual one level above the Contracting Officer, whose decision will be final.

Copies of the evaluations, Contractor responses, and review comments, if any, will be retained as part of the contract file, and may be used to support future award decisions.

a. Electronic Access to Contractor Performance Evaluations

Contractors may access evaluations through a secure Web site for review and comment at the following address:

<https://www.cpars.gov>.

End of clause.

SECTION H - Special Contract Requirements

ARTICLE H.1. HUMAN SUBJECTS

It is hereby understood and agreed that research involving human subjects shall not be conducted under this contract, and that no material developed, modified, or delivered by or to the Government under this contract, or any subsequent modification of such material, will be used by the Contractor or made available by the Contractor for use by anyone other than the Government, for experimental or therapeutic use involving humans without the prior written approval of the Contracting Officer.

ARTICLE H.2. NIH POLICY ON ENHANCING REPRODUCIBILITY THROUGH RIGOR AND TRANSPARENCY

Contractors shall adhere to the NIH policy of enhancing reproducibility through rigor and transparency by addressing each of the four areas of the policy in performance of the Statement of Work and in publications, as applicable: 1) Scientific Premise; 2) Scientific Rigor; 3) Consideration of Relevant Biological Variables, including Sex; and 4) Authentication of Key Biological and/or Chemical Resources. This policy applies to all NIH funded research and development, from basic through advanced clinical studies. See NIH Guide Notice, [NOT-OD-15-103](#), "Enhancing Reproducibility through Rigor and Transparency" and [NOT-OD-15-102](#), "Consideration of Sex as a Biological Variable in NIH-funded Research" for more information. In addition, publications are expected to follow the guidance at <https://www.nih.gov/research-training/rigor-reproducibility/principles-guidelines-reporting-preclinical-research>, whether preclinical or otherwise, as appropriate. More information is available at <https://grants.nih.gov/policy/reproducibility/index.htm>, including FAQs and a General Policy Overview.

ARTICLE H.3. NIH POLICY ON ENHANCING PUBLIC ACCESS TO ARCHIVED PUBLICATIONS RESULTING FROM NIH-FUNDED RESEARCH

NIH-funded investigators shall submit to the NIH National Library of Medicine's (NLM) PubMed Central (PMC) an electronic version of the author's final manuscript, upon acceptance for publication, resulting from any NIH-funded or conducted research, supported in whole or in part with direct costs from NIH regardless of NIH funding mechanism. NIH defines the author's final manuscript as the final version accepted for journal publication, which includes all modifications that result from the publishing and peer review process, and which should be made accessible as soon as possible, and no later than the time of an associated publication or the end of the award/support period, whichever comes first. The PMC archive will permanently preserve and retain these manuscripts for use by the public, health care providers, educators, scientists, and NIH. NIH Policy directs electronic submissions to the NIH/NLM/PMC: <https://www.ncbi.nlm.nih.gov/pmc/>.

Additional information is available at: <https://grants.nih.gov/grants/guide/notice-files/NOT-OD-21-013.html> and <https://publicaccess.nih.gov/>.

ARTICLE H.4. DUAL USE RESEARCH OF CONCERN

The Contractor shall comply with the United States Government Policy for Institutional Oversight of Life Sciences Dual Use Research of Concern (<https://www.phe.gov/s3/dualuse/Documents/durc-policy.pdf>) or "DURC policy". The responsibilities of the Contractor include but are not limited to:

1. Establishing internal policies and practices that provide for the identification and effective oversight of DURC;
2. Establishing an institutional review entity (IRE);
3. Ensuring that laboratory personnel conducting research have received education and training;
4. Maintaining records of institutional DURC reviews and completed risk mitigation plans related to research conducted under this contract, for the term of the contract plus three years after its completion, but no less than eight years, unless a shorter period is required by law or regulation;
5. Promptly providing records upon request by the U.S. Government, of institutional DURC reviews and completed risk mitigation plans related to research conducted under this contract;
6. Obtaining pre-approval from the Contracting Officer's Representative for all communications with third-parties, involving DURC funded by this contract, and;
7. Obtaining pre-approval from the Contracting Officer for subcontracts, subgrants, consultant agreements, or any other subaward involving research subject to the DURC policy and funded by this contract. The contractor shall ensure that the substantive requirements of this article are included in any such agreements.

Non-compliance with the DURC policy or with this article may result in suspension, debarment or termination for default.

ARTICLE H.5. ACKNOWLEDGEMENT OF FEDERAL FUNDING

The Contractor shall clearly state, when issuing statements, press releases, requests for proposals, bid solicitations and other documents describing projects or programs funded in whole or in part with Federal money: (1) the percentage of the total costs of the program or project which will be financed with Federal money; (2) the dollar amount of Federal funds for the project or program; and (3) the percentage and dollar amount of the total costs of the project or program that will be financed by nongovernmental sources.

ARTICLE H.6. DISSEMINATION OF FALSE OR DELIBERATELY MISLEADING INFORMATION

The Contractor shall not use contract funds to disseminate information that is deliberately false or misleading.

ARTICLE H.7. PRIVACY ACT, HHSAR 352.224-70 (December 2015)

This contract requires the Contractor to perform one or more of the following: (a) Design; (b) develop; or (c) operate a Federal agency system of records to accomplish an agency function in accordance with the Privacy Act of 1974 (Act)(5 U.S.C. 552a(m)(1)) and applicable agency regulations.

The term "system of records" means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual. Violations of the Act by the Contractor and/or its employees may result in the imposition of criminal penalties (5 U.S.C. 552a(i)).

The Contractor shall ensure that each of its employees knows the prescribed rules of conduct in CFR 45 part 5band that each employee is aware that he/she is subject to criminal penalties for violation of the Act to the same extent as Department of Health and Human Services employees. These provisions also apply to all subcontracts the Contractor awards under this contract which require the design, development or operation of the designated system(s)of records [5 U.S.C. 552a(m)(1)]. The contract work statement:

(a) identifies the system(s) of records and the design, development, or operation work the Contractor is to perform; and

(b) specifies the disposition to be made of such records upon completion of contract performance.

ARTICLE H.8. OMB CLEARANCE

In accordance with HHSAR 352.211-3, Paperwork Reduction Act, the Contractor shall not proceed with surveys or interviews until such time as Office of Management and Budget (OMB) Clearance for conducting interviews has been obtained by the Contracting Officer Representative (COR) and the Contracting Officer has issued written approval to proceed.

ARTICLE H.9. RESTRICTION ON PORNOGRAPHY ON COMPUTER NETWORKS

The Contractor shall not use contract funds to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

ARTICLE H.10. GUN CONTROL

The Contractor shall not use contract funds in whole or in part, to advocate or promote gun control.

ARTICLE H.11. OPTION PROVISION

Unless the Government exercises its option pursuant to the Option Clause set forth in SECTION I., the contract will consist only of the Base Period of the Statement of Work as defined in Sections C and F of the contract. Pursuant to FAR Clause 52.217-7, Option for Increased Quantity-Separately Priced Line Item /FAR Clause 52.217-9, Option to Extend the Term of the Contract set forth in SECTION I. of this contract, the Government may, by unilateral contract modification, require the Contractor to perform additional options set forth in the Statement of Work and also defined in Sections C and F of the contract. If the Government exercises this option, notice must be given before the expiration date of this contract, and the price of the contract will be increased as set forth in the OPTION PRICES Article in SECTION B of this contract.

ARTICLE H.12. SUBCONTRACTING PROVISIONS

a. Small Business Subcontracting Plan

1. In accordance with FAR 19.704 and FAR Clause 52.219-9, the submission of a subcontracting plan by other than small business offeror(s) is a requirement as a part of the proposal

submission process and is to be submitted separately from the technical and cost proposals. An offeror's subcontracting plan must be determined to be acceptable, by the Contracting Officer, prior to the contract award.

2. The failure of any Contractor or subcontractor to comply in good faith with FAR Clause 52.219-8, entitled " Utilization of Small Business Concerns" incorporated in this contract and the attached Subcontracting Plan, will be a material breach of such contract or subcontract and subject to the remedies reserved to the Government under FAR Clause 52.219-16 entitled, "Liquidated Damages- Subcontracting Plan."

b. Subcontracting Reports

1. An offeror is to submit their respective subcontracting plan electronically using the U.S. Department of Health and Human Services (HHS) Small Business Customer Experience (SBCX) system at <https://osdbu.hhs.gov> . The offeror shall follow the instructions outlined in the SBCX Industry Guide at: <https://oamp.od.nih.gov/nih-document-generation-system/dgs-workform-information/attachment-files-section-j> to successfully submit their subcontracting plan by the proposal submission deadline.

2. The official point of receipt for determining timely submission of an offeror's subcontracting plan is the SBCX system and/or email notification. Once the subcontracting plan is successfully submitted in the SBCX system the offeror should receive an email notification and confirmation message of completion upon submission.

3. If an offeror's subcontracting plan is not confirmed as received within the SBCX system by the proposal submission date specified in the solicitation, it will be considered late in accordance with subparagraph (c)(3) of FAR Clause 52.215-1, Instructions to Offeror-Competition Acquisition. Disposition of late submittals of a subcontracting plan by an offeror via the SBCX system is at the discretion of the Contracting Officer.

4. Any technical questions regarding the use of the SBCX system may be submitted via email message to the SBCX help desk at client.support@apexlogic.com. The client support hours of operation are Monday - Friday, 6:00 a.m. - 8:00 p.m. Eastern Standard Time (EST). Note: help desk tickets can be submitted 24 hours a day / 7 days a week and a representative will respond within the presented client support hours of operation for assistance.

5. Individual Subcontract Reports (ISR)

The Contractor must submit the following Subcontracting reports electronically via the Subcontracting Reporting System (eSRS) at <https://www.esrs.gov/>. Regardless of the effective date of this contract, the Report shall be due on the following dates for the entire life of this contract:

April 30th

October 30th

Expiration Date of Contract

6. Summary Subcontract Report (SSR)

Regardless of the effective date of this contract, the Summary Subcontract Report must be submitted annually on the following date for the entire life of this contract:

October 30th

For both the Individual and Summary Subcontract Reports, the [Contracting Officer/Contract Specialist/title of alternate designee] must be included as a contact for notification purposes at the following e- mail address:

Ignacio J. Reyes
Contracting Officer

ARTICLE H.13. INFORMATION SYSTEM DESIGN AND DEVELOPMENT, HHSAR 352.239-73 (FEB 2024) (DEVIATION)

(a) *Design or development at non-HHS facilities.* Information systems that are designed or developed for or on behalf of HHS at non-HHS facilities shall comply with all HHS directives developed in accordance with the Federal Information Security Modernization Act of 2014, Health Insurance Portability and Accountability Act (HIPAA) regulations, National Institute of Standards and Technology (NIST), and related HHS security and privacy control requirements for Federal information systems. This includes standards for the protection of electronic protected health information (PHI), outlined in 45 CFR Part 164, Subpart C, information and system security categorization level designations in accordance with Federal Information Processing Standards (FIPS) 199 and FIPS 200 with implementation of all baseline security controls commensurate with the FIPS 199 system security categorization and the Trusted Internet Connections Reference Architecture.

(b) *Privacy Impact Assessment.* During the development cycle a Privacy Impact Assessment must be completed by the contractor, provided to the Contracting Officer Representative, and approved by the appropriate HHS and Operating Division security and privacy officials; government, contractor, or independent third party.

(c) *Security of procured or developed systems and technologies.* The Contractor shall ensure the security of all procured or developed systems and technologies, including their subcomponents (hereinafter referred to as "Systems"), throughout the life of the contract and any extension, warranty, or maintenance periods. This includes, but is not limited to, workarounds, patches, hotfixes, upgrades, and any physical components (hereafter referred to as Security Fixes) which may be necessary to fix all security vulnerabilities published or known to the Contractor anywhere in the Systems, including Operating Systems and firmware. The Contractor shall ensure that security fixes shall not negatively impact the Systems.

(d) *Subcontract flow down requirements.* The Contractor shall incorporate and flow down the substance of this clause to all subcontracts where services to perform information system design and development are required.

(End of clause).

ARTICLE H.14. INFORMATION SYSTEM HOSTING, OPERATIONS, MAINTENANCE, OR USE, HHSAR 352.239-74 (FEB 2024) (DEVIATION).

a) *Definitions.* As used in this clause—

Assessment and Authorization (A&A) means the process used to ensure information systems including Major Applications and General Support Systems have effective security safeguards which have been implemented, planned for, and documented in an Information Technology Security Plan. The A&A process per applicable HHS policies and procedures is the mechanism by which HHS provides an Authorization to Operate (ATO), the official management decision given by the HHS to authorize operation of an information system.

Information system security plan means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements.

- b) *Hosting, operation, maintenance, or use at non-HHS facilities.* For information systems that are hosted, operated, maintained, or used on behalf of HHS at non-HHS facilities, Contractors/subcontractors are fully responsible and accountable for ensuring compliance with all applicable Health Insurance Portability and Accountability (HIPAA) Act of 1996 (HIPAA) regulations, the Privacy Act and other required HHS confidentiality statutes included in HHS mandatory yearly training and privacy policy, Federal Information Security Modernization Act (FISMA), National Institutes of Standards and Technology (NIST), Federal Information Processing Standards (FIPS), and HHS security and privacy policy. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The Contractor's security and privacy control procedures must be equivalent to or exceed those procedures used to secure HHS systems. A Privacy Impact Assessment (PIA) (if the system includes Personally Identifiable Information (PII)) or a Privacy Threshold Analysis (to determine if the system includes PII) must also be provided to the Contracting Officer Representative (COR) and approved by HHS Senior Agency Official for Privacy (SAOP) or designee prior to ATO. All external Internet connections to HHS network involving HHS information must be in accordance with the Trusted Internet Connections (TIC) Reference Architecture and reviewed and approved by HHS prior to implementation. For Cloud Services hosting, the Contractor shall also ensure compliance with the Federal Risk and Authorization Management Program (FedRAMP).
- c) *Collecting, processing, transmitting, and storing of PII.* Adequate security and privacy controls for collecting, processing, transmitting, and storing of PII, as determined by the HHS SAOP or designee, must be in place, tested, and approved by HHS prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of HHS. These security and privacy controls are to be assessed and stated within the PIA, Information System Security Plan, Information System Privacy Plan, Security Control Assessment Report, and/or Privacy Control Assessment Report, as agreed upon by the Contractor, COR, and the Operating Division Senior Official for Privacy. If these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII.
- d) *Annual FISMA security controls assessment.* The Contractor/subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update the PIA. Any deficiencies noted during this assessment must be provided to the

Contracting Officer for entry into HHS Plan of Action & Milestones (POA&M) management process. The Contractor/subcontractor must use HHS POA&M process to document planned remedial actions to address any deficiencies in information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes specified by the HHS in the performance work statement or statement of work, or in the approved remediation plan through the HHS POA&M process. Contractor/subcontractor procedures are subject to periodic, unannounced assessments by HHS officials, including the HHS Office of Inspector General. The physical security aspects associated with Contractor/subcontractor activities must also be subject to such assessments. The results of an annual review or a major change in the cybersecurity posture at any time may indicate the need for reassessment and reauthorization of the system. If major changes to the system occur that may affect the privacy or security of the data or the system, the A&A of the system may need to be reviewed, retested and re-authorized per HHS Rules of Behavior for the Use of HHS Information and IT Resources Policy. Major changes introducing new privacy risks require an updated and reapproved PIA.

- e) *Annual self-assessment.* The Contractor/subcontractor must conduct an annual self-assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COR. HHS reserves the right to conduct such an assessment using government personnel or another Contractor/subcontractor. The Contractor/subcontractor must take appropriate and timely action, as may be specifically addressed in the contract, to correct or mitigate any weaknesses discovered during such testing, at no additional cost to the Government to correct Contractor/subcontractor systems and outsourced services.
- f) *Prohibition of installation and use of personally-owned or Contractor-owned equipment or software on HHS networks.* HHS prohibits the installation and use of personally-owned or Contractor/subcontractor-owned equipment or software on HHS networks. If non-HHS owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, performance work statement, statement of work, or contract. All of the security controls required for government furnished equipment must also be utilized in approved other equipment (OE) at the Contractor's expense. All remote systems must be equipped with, and use, an HHS-approved antivirus software and a personal (host-based or enclave based) firewall that is configured with an HHS-approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-HHS owned OE.
- g) *Disposal or return of electronic storage media on non-HHS leased or non-HHS owned IT equipment.* All electronic storage media used on non-HHS leased or non-HHS owned IT equipment that is used to store, process, or access HHS information must be handled in adherence with disposition instructions upon—
 - (1) Completion or termination of the contract; or
 - (2) Disposal or return of the IT equipment by the Contractor/subcontractor or any person acting on behalf of the Contractor/subcontractor, whichever is earlier. Media (e.g., hard drives, optical disks, CDs, back-up tapes) used by the Contractors/ subcontractors that contain HHS information must be returned to the HHS for sanitization or destruction or the Contractor/subcontractor must self-

certify that the media has been disposed of per disposition instructions. This must be completed within 30 days of termination of the contract.

- h) *Bio-Medical devices and other equipment or systems.* Bio-Medical devices and other equipment or systems containing media (e.g., hard drives, optical disks) with HHS sensitive information will not be returned to the Contractor at the end of lease, for trade-in, or other purposes. For purposes of these devices and protection of HHS sensitive information the devices may be provided back to the Contractor under one of three scenarios—

- (1) The Contractor must accept the system without the drive;
- (2) A spare drive must be installed in place of the original drive at time of turn-in if HHS initial medical device purchase included a spare drive; or
- (3) The Contractor may request reimbursement for the drive at a reasonable open market replacement cost to be separately negotiated by the Contracting Officer and the Contractor at time of contract closeout.

(End of clause).

ARTICLE H.15. COMMUNICATIONS MATERIALS AND SERVICES

To build and maintain public trust; promote credibility and consistency; minimize consistency and frustration; and contribute to efforts aimed at leveraging reduced resources and eliminating waste in Government, the Contractor shall ensure that all materials generated and/or services provided under this contract, comply with all applicable NIH policy and procedures published by the NIH Office of Management Assessment in conjunction with the NIH Office of Communications and Public Liaison as set forth below. This acquisition requires the Contractor to:

[] Prepare, review, and/or distribute NIH Publications and Audiovisuals.

NIH Policy Manual Chapter 1184, "Preparation and Clearance of Scientific, Technical, and Public Information Presented by NIH Employees or Produced for Distribution by NIH," is applicable to this contract.

<https://policymanual.nih.gov/1184>

[X] Use the NIH name and logo.

NIH Policy Manual Chapter 1186, "Use of NIH Names and Logos," is applicable to this contract.

<https://policymanual.nih.gov/1186>

[] Create and/or Manage a Public Website which includes NIH hosted social media site(s), Web application(s) and mobile Web Site (s).

NIHPolicyManualChapter2804*, "Websites and Digital Services - Management Policy," is applicable to this contract. <https://policymanual.nih.gov/2804>

[] Create and/or Manage an NIH Website that maintains and disseminates personal information.

NIH Policy Manual Chapter 2805*, "NIH Web Privacy Policy," is applicable to this contract.
<https://policymanual.nih.gov/2805>

[] **Create and/or Manage an NIH hosted and/or funded social media site(s), Web application(s) and mobile Web site(s).**

"NIH Social Media Guidelines," is applicable to this contract. <https://employees.nih.gov/pages/social-media/>

* NOTE: NIH Policy Manual Chapters found in the 2800 series are currently only available to NIH personnel. If unavailable, contact the Contracting Officer for a copy.

Additional Standards applicable to this contract are identified in the Statement of Work. If it is determined by the Government that products, services, and deliverables provided by the Contractor do not conform to standards described in these directives, remediation to an acceptable level of conformance shall be the responsibility of the Contractor at its own expense.

ARTICLE H.16. RESPONSIBILITIES OF INSTITUTIONS REGARDING INVESTIGATOR FINANCIAL CONFLICTS OF INTEREST

The Institution (includes any Contractor, public or private, excluding a Federal agency) shall comply with the requirements of 45 CFR Part 94, Responsible Prospective Contractors, which promotes objectivity in research by establishing standards to ensure that Investigators (defined as the project director or principal Investigator and any other person, regardless of title or position, who is responsible for the design, conduct, or reporting of research funded under NIH contracts, or proposed for such funding, which may include, for example, collaborators or consultants) will not be biased by any Investigator financial conflicts of interest. 45 CFR Part 94 is available at the following Web site: <https://www.ecfr.gov/current/title-45/part-94>.

As required by 45 CFR Part 94.4, **Responsibilities of Institutions regarding Investigator financial conflicts of interest**, each Institution shall:

- a. Maintain an up-to-date, written, enforced policy on financial conflicts of interest that complies with this part, and make such policy available via a publicly accessible Web site. If the Institution does not have any current presence on a publicly accessible Web site (and only in those cases), the Institution shall make its written policy available to any requestor within five business days of a request. If, however, the Institution acquires a presence on a publicly accessible Web site during the time of the NIH award, the requirement to post the information on that Web site will apply within 30 calendar days. If an Institution maintains a policy on financial conflicts of interest that includes standards that are more stringent than this part (e.g., that require a more extensive disclosure of financial interests), the Institution shall adhere to its policy and shall provide FCOI reports regarding identified financial conflicts of interest to the NIH Awarding Component in accordance with the Institution's own standards and within the timeframe prescribed by this part.
- b. Inform each Investigator of the Institution's policy on financial conflicts of interest, the Investigator's responsibilities regarding disclosure of significant financial interests, and of these regulations, and require each Investigator to complete training regarding the same prior to engaging in research related to any NIH-funded contract and at least every four years, and immediately when any of the following circumstances apply:

1. The Institution revises its financial conflict of interest policies or procedures in any manner that affects the requirements of Investigators;
2. An Investigator is new to an Institution; or
3. An Institution finds that an Investigator is not in compliance with the Institution's financial conflict of interest policy or management plan.

c. If the Institution carries out the NIH-funded research through a subrecipient (e.g., subcontractors, or consortium members), the Institution (awardee Institution) must take reasonable steps to ensure that any subrecipient Investigator complies with this part by incorporating as part of a written agreement with the subrecipient terms that establish whether the financial conflicts of interest policy of the awardee Institution or that of the subrecipient will apply to the subrecipient's Investigators.

1. If the subrecipient's Investigators must comply with the subrecipient's financial conflicts of interest policy, the subrecipient shall certify as part of the agreement referenced above that its policy complies with this part. If the subrecipient cannot provide such certification, the agreement shall state that subrecipient Investigators are subject to the financial conflicts of interest policy of the awardee Institution for disclosing significant financial interests that are directly related to the subrecipient's work for the awardee Institution;
2. Additionally, if the subrecipient's Investigators must comply with the subrecipient's financial conflicts of interest policy, the agreement referenced above shall specify time period(s) for the subrecipient to report all identified financial conflicts of interest to the awardee Institution. Such time period(s) shall be sufficient to enable the awardee Institution to provide timely FCOI reports, as necessary, to the NIH as required by this part;
3. Alternatively, if the subrecipient's Investigators must comply with the awardee Institution's financial conflicts of interest policy, the agreement referenced above shall specify time period(s) for the subrecipient to submit all Investigator disclosures of significant financial interests to the awardee Institution. Such time period(s) shall be sufficient to enable the awardee Institution to comply timely with its review, management, and reporting obligations under this part.
4. Providing FCOI reports to the NIH Awarding Component regarding all financial conflicts of interest of all subrecipient Investigators consistent with this part, i.e., prior to the expenditure of funds and within 60 days of any subsequently identified FCOI.

d. Designate an institutional official(s) to solicit and review disclosures of significant financial interests from each Investigator who is planning to participate in, or is participating in, the NIH-funded research.

e. Require that each Investigator who is planning to participate in the NIH-funded research disclose to the Institution's designated official(s) the Investigator's significant financial interests (and those of the Investigator's spouse and dependent children) no later than date of submission of the Institution's proposal for NIH-funded research

f. Require each Investigator who is participating in the NIH-funded research to submit an updated disclosure of significant financial interests at least annually, in accordance with the specific time period prescribed by the Institution, during the period of the award. Such disclosure shall include any

information that was not disclosed initially to the Institution pursuant to paragraph (e)(1) of this section, or in a subsequent disclosure of significant financial interests (e.g., any financial conflict of interest identified on a NIH-funded project that was transferred from another Institution), and shall include updated information regarding any previously disclosed significant financial interest (e.g., the updated value of a previously disclosed equity interest).

g. Require each Investigator who is participating in the NIH-funded research to submit an updated disclosure of significant financial interests within thirty days of discovering or acquiring (e.g., through purchase, marriage, or inheritance) a new significant financial interest.

h. Provide guidelines consistent with this part for the designated institutional official(s) to determine whether an Investigator's significant financial interest is related to NIH-funded research and, if so related, whether the significant financial interest is a financial conflict of interest. An Investigator's significant financial interest is related to NIH-funded research when the Institution, through its designated official(s), reasonably determines that the significant financial interest: Could be affected by the NIH-funded research; or is in an entity whose financial interest could be affected by the research. The Institution may involve the Investigator in the designated official(s)'s determination of whether a significant financial interest is related to the NIH-funded research. A financial conflict of interest exists when the Institution, through its designated official(s), reasonably determines that the significant financial interest could directly and significantly affect the design, conduct, or reporting of the NIH-funded research.

i. Take such actions as necessary to manage financial conflicts of interest, including any financial conflicts of a subrecipient Investigator pursuant to paragraph (c) of this section. Management of an identified financial conflict of interest requires development and implementation of a management plan and, if necessary, a retrospective review and mitigation report pursuant to § 94.5(a).

j. Provide initial and ongoing FCOI reports to the NIH as required pursuant to § 94.5(b).

k. Maintain records relating to all Investigator disclosures of financial interests and the Institution's review of, and response to, such disclosures (whether or not a disclosure resulted in the Institution's determination of a financial conflict of interest), and all actions under the Institution's policy or retrospective review, if applicable, for at least three years from the date of final payment or, where applicable, for the time periods specified in 48 CFR part 4, subpart 4.7.

l. Establish adequate enforcement mechanisms and provide for employee sanctions or other administrative actions to ensure Investigator compliance as appropriate.

m. Certify, in each contract proposal to which this part applies, that the Institution:

1. Has in effect at that Institution an up-to-date, written, and enforced administrative process to identify and manage financial conflicts of interest with respect to all research projects for which funding is sought or received from the NIH;
2. Shall promote and enforce Investigator compliance with this part's requirements including those pertaining to disclosure of significant financial interests;

3. Shall manage financial conflicts of interest and provide initial and ongoing FCOI reports to the NIH Awarding Component consistent with this part;

4. Agrees to make information available, promptly upon request, to the HHS relating to any Investigator disclosure of financial interests and the Institution's review of, and response to, such disclosure, whether or not the disclosure resulted in the Institution's determination of a financial conflict of interest; and

5. Shall fully comply with the requirements of this part.

n. As required by 45 CFR Part 94.5, Management and reporting of financial conflicts of interest:

1. Management of financial conflicts of interest.

2. Prior to the Institution's expenditure of any funds under a NIH-funded research project, the designated official(s) of an Institution shall, consistent with § 94.4(f) : review all Investigator disclosures of significant financial interests; determine whether any significant financial interests relate to NIH-funded research; determine whether a financial conflict of interest exists; and, if so, develop and implement a management plan that shall specify the actions that have been, and shall be, taken to manage such financial conflict of interest. Examples of conditions or restrictions that might be imposed to manage a financial conflict of interest include, but are not limited to:

i Public disclosure of financial conflicts of interest (e.g., when presenting or publishing the research);

ii For research projects involving human subjects research, disclosure of financial conflicts of interest directly to participants;

iii Appointment of an independent monitor capable of taking measures to protect the design, conduct, and reporting of the research against bias, resulting from the financial conflict of interest;

iv Modification of the research plan;

v Change of personnel or personnel responsibilities, or disqualification of personnel from participation in all or a portion of the research;

vi Reduction or elimination of the financial interest (e.g., sale of an equity interest); or

vii Severance of relationships that create financial conflicts.

o. Whenever, in the course of an ongoing NIH-funded research project, an Investigator who is new to participating in the research project discloses a significant financial interest or an existing Investigator discloses a new significant financial interest to the Institution, the designated official(s) of the Institution shall, within sixty days: review the disclosure of the significant financial interest; determine whether it is related to NIH-funded research; determine whether a financial conflict of interest exists; and, if so, implement, on at least an interim basis, a management plan that shall specify the actions that have been, and will be, taken to manage such financial conflict of interest. Depending on the nature of the

significant financial interest, an Institution may determine that additional interim measures are necessary with regard to the Investigator's participation in the NIH-funded research project between the date of disclosure and the completion of the Institution's review.

p. Whenever an Institution identifies a significant financial interest that was not disclosed timely by an Investigator or, for whatever reason, was not previously reviewed by the Institution during an ongoing NIH-funded research project (e.g., was not timely reviewed or reported by a subrecipient), the designated official(s) shall, within sixty days: review the significant financial interest; determine whether it is related to NIH-funded research; determine whether a financial conflict of interest exists; and, if so:

1. Implement, on at least an interim basis, a management plan that shall specify the actions that have been, and will be, taken to manage such financial conflict of interest going forward;

2. (A) In addition, whenever a financial conflict of interest is not identified or managed in a timely manner including failure by the Investigator to disclose a significant financial interest that is determined by the Institution to constitute a financial conflict of interest; failure by the Institution to review or manage such a financial conflict of interest; or failure by the Investigator to comply with a financial conflict of interest management plan, the Institution shall, within 120 days of the Institution's determination of noncompliance, complete a retrospective review of the Investigator's activities and the NIH-funded research project to determine whether any NIH-funded research, or portion thereof, conducted during the time period of the noncompliance, was biased in the design, conduct, or reporting of such research.

B. The Institution is required to document the retrospective review; such documentation shall include, but not necessarily be limited to, all of the following key elements:

1. Project number;
2. Project title;
3. PD/PI or contact PD/PI if a multiple PD/PI model is used;
4. Name of the Investigator with the FCOI;
5. Name of the entity with which the Investigator has a financial conflict of interest;
6. Reason(s) for the retrospective review;
7. Detailed methodology used for the retrospective review (e.g., methodology of the review process, composition of the review panel, documents reviewed);
8. Findings of the review; and
9. Conclusions of the review.

q. Based on the results of the retrospective review, if appropriate, the Institution shall update the previously submitted FCOI report, specifying the actions that will be taken to manage the financial

conflict of interest going forward. If bias is found, the Institution is required to notify the NIH Awarding Component promptly and submit a mitigation report to the NIH Awarding Component. The mitigation report must include, at a minimum, the key elements documented in the retrospective review above and a description of the impact of the bias on the research project and the Institution's plan of action or actions taken to eliminate or mitigate the effect of the bias (e.g., impact on the research project; extent of harm done, including any qualitative and quantitative data to support any actual or future harm; analysis of whether the research project is salvageable). Thereafter, the Institution will submit FCOI reports annually, as specified elsewhere in this part. Depending on the nature of the financial conflict of interest, an Institution may determine that additional interim measures are necessary with regard to the Investigator's participation in the NIH-funded research project between the date that the financial conflict of interest or the Investigator's noncompliance is determined and the completion of the Institution's retrospective review.

r. Whenever an Institution implements a management plan pursuant to this part, the Institution shall monitor Investigator compliance with the management plan on an ongoing basis until the completion of the NIH-funded research project.

s. Prior to the Institution's expenditure of any funds under a NIH-funded research project, the Institution shall ensure public accessibility, via a publicly accessible Web site or written response to any requestor within five business days of a request, of information concerning any significant financial interest disclosed to the Institution that meets the following three criteria:

1. The significant financial interest was disclosed and is still held by key personnel as defined in this part;
2. The Institution determines that the significant financial interest is related to the NIH-funded research; and
3. The Institution determines that the significant financial interest is a financial conflict of interest.

t. The information that the Institution makes available via a publicly accessible Web site or written response to any requestor within five business days of a request, shall include, at a minimum, the following: The Investigator's name; the Investigator's title and role with respect to the research project; the name of the entity in which the significant financial interest is held; the nature of the significant financial interest; and the approximate dollar value of the significant financial interest (dollar ranges are permissible: \$0-\$4,999; \$5,000-\$9,999; \$10,000-\$19,999; amounts between \$20,000-\$100,000 by increments of \$20,000; amounts above \$100,000 by increments of \$50,000), or a statement that the interest is one whose value cannot be readily determined through reference to public prices or other reasonable measures of fair market value.

u. If the Institution uses a publicly accessible Web site for the purposes of this subsection, the information that the Institution posts shall be updated at least annually. In addition, the Institution shall update the Web site within sixty days of the Institution's receipt or identification of information concerning any additional significant financial interest of the senior/key personnel for the NIH-funded research project that was not previously disclosed, or upon the disclosure of a significant financial interest of senior/key personnel new to the NIH-funded research project, if the Institution determines that the significant financial interest is related to the NIH-funded research and is a financial conflict of

interest. The Web site shall note that the information provided is current as of the date listed and is subject to updates, on at least an annual basis and within 60 days of the Institution's identification of a new financial conflict of interest. If the Institution responds to written requests for the purposes of this subsection, the Institution will note in its written response that the information provided is current as of the date of the correspondence and is subject to updates, on at least an annual basis and within 60 days of the Institution's identification of a new financial conflict of interest, which should be requested subsequently by the requestor.

v. Information concerning the significant financial interests of an individual subject to paragraph (a)(5) of this section shall remain available, for responses to written requests or for posting via the Institution's publicly accessible Web site for at least three years from the date that the information was most recently updated.

w. In addition to the types of financial conflicts of interest as defined in this part that must be managed pursuant to this section, an Institution may require the management of other financial conflicts of interest in its policy on financial conflicts of interest, as the Institution deems appropriate.

2. Reporting of financial conflicts of interest.

a. Prior to the Institution's expenditure of any funds under a NIH-funded research project, the Institution shall provide to the NIH Awarding Component an FCOI report regarding any Investigator's significant financial interest found by the Institution to be conflicting and ensure that the Institution has implemented a management plan in accordance with this part. In cases in which the Institution identifies a financial conflict of interest and eliminates it prior to the expenditure of NIH-awarded funds, the Institution shall not submit an FCOI report to the NIH Awarding Component.

b. For any significant financial interest that the Institution identifies as conflicting subsequent to the Institution's initial FCOI report during an ongoing NIH-funded research project (e.g., upon the participation of an Investigator who is new to the research project), the Institution shall provide to the NIH Awarding Component, within sixty days, an FCOI report regarding the financial conflict of interest and ensure that the Institution has implemented a management plan in accordance with this part. Pursuant to paragraph (a)(3)(ii) of this section, where such FCOI report involves a significant financial interest that was not disclosed timely by an Investigator or, for whatever reason, was not previously reviewed or managed by the Institution (e.g., was not timely reviewed or reported by a subrecipient), the Institution also is required to complete a retrospective review to determine whether any NIH-funded research, or portion thereof, conducted prior to the identification and management of the financial conflict of interest was biased in the design, conduct, or reporting of such research. Additionally, pursuant to paragraph (a)(3)(iii) of this section, if bias is found, the Institution is required to notify the NIH Awarding Component promptly and submit a mitigation report to the NIH Awarding Component.

c. Any FCOI report required under paragraphs (b)(1) or (b)(2) of this section shall include sufficient information to enable the NIH Awarding Component to understand the nature and extent of the financial conflict, and to assess the appropriateness of the Institution's management plan. Elements of the FCOI report shall include, but are not necessarily limited to the following:

i. Project/Contract number;

- ii. PD/PI or Contact PD/PI if a multiple PD/PI model is used;
 - iii. Name of the Investigator with the financial conflict of interest;
 - iv. Name of the entity with which the Investigator has a financial conflict of interest;
 - v. Nature of the financial interest (e.g., equity, consulting fee, travel reimbursement, honorarium);
 - vi. Value of the financial interest (dollar ranges are permissible: \$0-\$4,999; \$5,000-\$9,999; \$10,000-\$19,999; amounts between \$20,000-\$100,000 by increments of \$20,000; amounts above \$100,000 by increments of \$50,000), or a statement that the interest is one whose value cannot be readily determined through reference to public prices or other reasonable measures of fair market value;
 - vii. A description of how the financial interest relates to the NIH-funded research and the basis for the Institution's determination that the financial interest conflicts with such research; and
 - viii. A description of the key elements of the Institution's management plan, including:
 - A. Role and principal duties of the conflicted Investigator in the research project;
 - B. Conditions of the management plan;
 - C. How the management plan is designed to safeguard objectivity in the research project;
 - D. Confirmation of the Investigator's agreement to the management plan;
 - E. How the management plan will be monitored to ensure Investigator compliance; and
 - F. Other information as needed.
- d. For any financial conflict of interest previously reported by the Institution with regard to an ongoing NIH-funded research project, the Institution shall provide to the NIH Awarding Component an annual FCOI report that addresses the status of the financial conflict of interest and any changes to the management plan for the duration of the NIH-funded research project. The annual FCOI report shall specify whether the financial conflict is still being managed or explain why the financial conflict of interest no longer exists. The Institution shall provide annual FCOI reports to the NIH Awarding Component for the duration of the project period (including extensions with or without funds) in the time and manner specified by the NIH Awarding Component.
- e. In addition to the types of financial conflicts of interest as defined in this part that must be reported pursuant to this section, an Institution may require the reporting of other financial conflicts of interest in its policy on financial conflicts of interest, as the Institution deems appropriate.

ARTICLE H.17. PUBLICATION AND PUBLICITY

In addition to the requirements set forth in HHSAR Clause **352.227-70, Publications and Publicity** incorporated by reference in SECTION I of this contract, the Contractor shall acknowledge the support of the National Institutes of Health whenever publicizing the work under this contract in any media by including an acknowledgment substantially as follows:

"This project has been funded in whole or in part with Federal funds from the [TBD] , National Institutes of Health, Department of Health and Human Services, under Contract No. [TBD] "

ARTICLE H.18. REPORTING MATTERS INVOLVING FRAUD, WASTE AND ABUSE

Anyone who becomes aware of the existence or apparent existence of fraud, waste and abuse in NIH funded programs is encouraged to report such matters to the HHS Inspector General's Office in writing or on the Inspector General's Hotline. The toll free number is **1-800-HHS-TIPS (1-800-447-8477)**. All telephone calls will be handled confidentially. The website to file a complaint on-line is: <https://oig.hhs.gov/fraud/report-fraud/> and the mailing address is:

US Department of Health and Human Services
Office of Inspector General
ATTN: OIG HOTLINE OPERATIONS
P.O. Box 23489
Washington, D.C. 20026

ARTICLE H.19. OBTAINING AND DISSEMINATING BIOMEDICAL RESEARCH RESOURCES

Unique research resources arising from NIH-funded research are to be shared with the scientific research community. NIH provides guidance, entitled, "Principles and Guidelines for Recipients of NIH Research Grants and Contracts on Obtaining and Disseminating Biomedical Research Resources: Final Notice," (Federal Register Notice, December 23, 1999 [64 FR 72090]), concerning the appropriate terms for disseminating and acquiring these research resources. This guidance, found at: <http://www.gpo.gov/fdsys/pkg/FR-1999-12-23/pdf/99-33292.pdf> is intended to help Contractors ensure that the conditions they impose and accept on the transfer of research tools will facilitate further biomedical research, consistent with the requirements of the Bayh-Dole Act and NIH funding policy.

Note: For the purposes of this Article, the terms, "research tools", "research materials", and "research resources" are used interchangeably and have the same meaning.

ARTICLE H.20. SHARING RESEARCH DATA

[The Data Management and Sharing Plan submitted by the Contractor is acceptable/The Contractor's Data Management and Sharing Plan, dated _____, is hereby incorporated by reference herein.] The Contractor agrees to adhere to its Data Management and Sharing Plan and shall request the prior written approval of the Contracting Officer for any changes in its Data Management and Sharing Plan.

NIH encourages, to the maximum extent practicable, the sharing of final research data to serve public health for the common good and this contract is expected to generate research data that must be shared with the public and other researchers. NIH's Data Management and Sharing policies may be found at the following websites:

- NOT-OD-14-124 - NIH Genomic Data Sharing Policy;
- NOT-OD-21-013 - Final NIH Policy for Data Management and Sharing;
- NOT-OD-21-014 - Supplemental Information to the NIH Policy for Data Management and Sharing: Elements of an NIH Data Management and Sharing Plan;
- NOT-OD-21-015 - Supplemental Information to the NIH Policy for Data Management and Sharing: Allowable Costs for Data Management and Sharing; and
- NOT-OD-21-016 - Supplemental Information to the NIH Policy for Data Management and Sharing: Selecting a Repository for Data Resulting from NIH-Supported Research.

NIH recognizes that data sharing may be complicated or limited, in some cases, by institutional policies, local IRB rules, as well as local, state and Federal laws and regulations, including but not limited to the Privacy Act of 1974 (2020 Edition), the Privacy Rule (see HHS-published documentation on the Privacy Rule at <https://www.hhs.gov/ocr/index.html>), the Health Insurance Portability & Accountability Act of 1996 (HIPAA), and the Health IT for Economic & Clinical Health (HITECH) Act, which was enacted as part of the American Recovery & Reinvestment Act of 2009 (ARRA).

As per NIH Notice NOD-OD-21-013, "Final NIH Policy for Data Management and Sharing," respect for participant autonomy and maintenance of participant privacy and confidentiality can be consistent with data sharing. The rights and privacy of people who participate in NIH-funded research shall be protected at all times and Contractors shall anonymize and aggregate (or otherwise fully protect from release) any personally identifiable information (PII), HIPAA-protected personal health information (PHI), and/or HITECH-protected electronic health information which they receive, use, and/or reference; thus, data intended for broader use should be free of any and all personal identifiers that would permit linkages to individual research participants and/or variables that could lead to any disclosure of the identity of individual subjects, direct or deductive, for which the Government shall have no liability whatsoever.

ARTICLE H.21. POSSESSION USE AND TRANSFER OF SELECT BIOLOGICAL AGENTS OR TOXINS

The work being conducted under this contract may involve the possession, use, or transfer of a select agent or toxin. The Contractor shall not conduct work involving a Select Agent or Toxin under this contract until it and any associated subcontractor(s) comply with the following:

For prime or subcontract awards to ***domestic institutions*** that possess, use, and/or transfer a Select Agent or Toxin under this contract, the institution must comply with the provisions of 42 CFR part 73, 7 CFR part 331, and/or 9 CFR part 121 (https://ors.od.nih.gov/sr/dohs/safety/laboratory/BioSafety/Pages/select_agents.aspx) as required, before using NIH funds for work involving a *Select Agent or Toxin* . **No NIH funds can be used for research involving a *Select Agent or Toxin* at a domestic institution without a valid registration certificate.**

For prime or subcontract awards to ***foreign institutions*** that possess, use, and/or transfer a *Select Agent or Toxin* , before using NIH funds for any work directly involving a *Select Agent or Toxin* , the foreign institution must provide information satisfactory to the NIAID that safety, security, and training standards equivalent to those described in 42 CFR part 73, 7 CFR part 331, and/or 9 CFR part 121 are in

place and will be administered on behalf of all *Select Agent or Toxin* work supported by these funds. The process for making this determination includes a site visit to the foreign laboratory facility by an NIAID representative. During this visit, the foreign institution must provide the following information: concise summaries of safety, security, and training plans; names of individuals at the foreign institution who will have access to the Select Agent or Toxin and procedures for ensuring that only approved and appropriate individuals, in accordance with institution procedures, will have access to the Select Agents or Toxins under the contract; and copies of or links to any applicable laws, regulations, policies, and procedures applicable to that institution for the safe and secure possession, use, and/or transfer of select agents. Site visits to foreign laboratories are conducted every three years after the initial review. **No NIH funds can be used for work involving a *Select Agent or Toxin* at a foreign institution without written approval from the Contracting Officer.**

Prior to conducting a restricted experiment with a Select Agent or Toxin under this contract or any associated subcontract, the contractor must discuss the experiment with the Contracting Officer's Representative (COR) and request and obtain written approval from the Contracting Officer. **Domestic institutions** must submit to the Contracting Officer written approval from the CDC to perform the proposed restricted experiment. **Foreign institutions** require review by a NIAID representative. The prime contractor must contact the COR and the NIAID Office of International Extramural Activities (OIEA) at niaidforeignawards@niaid.nih.gov for guidance on the process used by NIAID to review proposed restricted experiments. The NIAID website provides an overview of the review process at <https://www.niaid.nih.gov/grants-contracts/foreign-manual-of-operations>. The Contracting Officer will notify the prime Contractor when the process is complete. **No NIH funds can be used for a restricted experiment with a Select Agent or Toxin at either a domestic or foreign institution without written approval from the Contracting Officer.**

Listings of HHS and USDA select agents and toxins, and overlap select agents or toxins as well as information about the registration process for domestic institutions, are available on the Select Agent Program Web site at <https://www.selectagents.gov/>. For foreign institutions, see the NIAID Select Agent Award information: (<https://www.niaid.nih.gov/grants-contracts/sa-grants-include-foreign-institutions>).

ARTICLE H.22. HIGHLY PATHOGENIC AGENTS

The work being conducted under this contract may involve a Highly Pathogenic Agent (HPA). The NIAID defines an HPA as a pathogen that, under any circumstances, warrants a biocontainment safety level of BSL3 or higher according to either:

- a. The current edition of the CDC/NIH Biosafety in Microbiological and Biomedical Laboratories (BMBL)(<https://ors.od.nih.gov/sr/dohs/Documents/CDC-BiosafetyMicrobiologicalBiomedicalLaboratories-2020-P.PDF>);
- b. The Contractor's Institutional Biosafety Committee (IBC) or equivalent body; or

c. The Contractor's appropriate designated institutional biosafety official.

If there is ambiguity in the BMBL guidelines and/or there is disagreement among the BMBL, an IBC or equivalent body, or institutional biosafety official, the highest recommended containment level must be used.

ARTICLE H.23. HOTEL AND MOTEL FIRE SAFETY ACT OF 1990 (P.L. 101-391)

Pursuant to Public Law 101-391, no Federal funds may be used to sponsor or fund in whole or in part a meeting, convention, conference or training seminar that is conducted in, or that otherwise uses the rooms, facilities, or services of a place of public accommodation that do not meet the requirements of the fire prevention and control guidelines as described in the Public Law. This restriction applies to public accommodations both foreign and domestic.

Public accommodations that meet the requirements can be accessed at: <https://apps.usfa.fema.gov/hotel/>.

ARTICLE H.24. PROHIBITION ON CONTRACTOR INVOLVEMENT WITH TERRORIST ACTIVITIES

The Contractor acknowledges that U.S. Executive Orders and Laws, including but not limited to E.O. 13224 and P.L. 107-56, prohibit transactions with, and the provision of resources and support to, individuals and organizations associated with terrorism. It is the legal responsibility of the Contractor to ensure compliance with these Executive Orders and Laws. This clause must be included in all subcontracts issued under this contract.

ARTICLE H.25. CONSTITUTION DAY

Each educational institution that receives Federal funds for a fiscal year shall hold an educational program on the United States Constitution on September 17 of such year for the students serviced by the educational institution in accordance with Public Law 108-447.

ARTICLE H.26. USE OF FUNDS FOR CONFERENCES, MEETINGS AND FOOD

The Contractor shall not use contract funds (direct or indirect) to conduct meetings or conferences in performance of this contract without prior written Contracting Officer approval.

In addition, the use of contract funds to purchase food for meals, light refreshments, or beverages is expressly prohibited.

ARTICLE H.28. GUIDELINES FOR INCLUSION OF WOMEN, MINORITIES, AND PERSONS WITH DISABILITIES IN NIH-SUPPORTED CONFERENCES

Pursuant to the NIH Revitalization Act (P.L. 103-43, Section 206), which adds Section 402(b) to the Public Health Service Act, it is required that NIH, "in conducting and supporting programs for research, research training, recruitment, and other activities, provide for an increase in the number of women and individuals from disadvantaged backgrounds (including racial and ethnic minorities) in the fields of biomedical and behavioral research." In addition, Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act of 1990 require reasonable accommodations to be provided to individuals with disabilities.

It is NIH policy that organizers of scientific meetings should make a concerted effort to achieve appropriate representation of women, racial/ethnic minorities, and persons with disabilities, and other individuals who have been traditionally underrepresented in science, in all NIH sponsored and/or supported scientific meetings.

Therefore, it is the contractor's responsibility to ensure the inclusion of women, minorities, and persons with disabilities in all events when recruiting speakers and/or participants for meetings or conferences funded by this contract.

See the policy announcement for additional details and definitions at:
<https://grants.nih.gov/grants/guide/notice-files/NOT-OD-21-053.html>

ARTICLE H.29. USE OF FUNDS FOR PROMOTIONAL ITEMS

The Contractor shall not use contract funds to purchase promotional items. Promotional items include, but are not limited to: clothing and commemorative items such as pens, mugs/cups, folders/folios, lanyards, and conference bags that are sometimes provided to visitors, employees, grantees, or conference attendees. This includes items or tokens given to individuals as these are considered personal gifts for which contract funds may not be expended.

SECTION I - Contract Clauses

ARTICLE 1. GENERAL CLAUSES

THE FOLLOWING ARTICLE I.1. CLAUSE LISTING(S) WILL BE APPLICABLE TO MOST CONTRACTS RESULTING FROM THIS RFP. HOWEVER, THE ORGANIZATIONAL STRUCTURE OF THE SUCCESSFUL OFFEROR(S) WILL DETERMINE THE SPECIFIC CLAUSE LISTING TO BE CONTAINED IN THE CONTRACT(S) AWARDED FROM THIS RFP.

ARTICLE I.1. GENERAL CLAUSES FOR A NEGOTIATED FIXED-PRICE RESEARCH AND DEVELOPMENT CONTRACT

This solicitation incorporates the following clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically as follows: FAR Clauses at: <https://www.acquisition.gov/> . HHSAR Clauses at: <https://www.hhs.gov/grants-contracts/contracts/contract-policies-regulations/hhsar/part-352-solicitation-provisions-contract-clauses/index.html> .

Clause Database	Clause Number	Clause Title
RFO	52.202-1	Definitions. (JUN 2020)
RFO	52.203-3	Gratuities. (APR 1984)
RFO	52.203-5	Covenant Against Contingent Fees. (MAY 2014)
RFO	52.203-6	Restrictions on Subcontractor Sales to the Government. (JUN 2020)
RFO	52.203-7	Anti-Kickback Procedures. (JUN 2020)
RFO	52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity. (MAY 2014)
RFO	52.203-10	Price or Fee Adjustment for Illegal or Improper Activity. (MAY 2014)
RFO	52.203-12	Limitation on Payments to Influence Certain Federal Transactions. (JUN 2020)
RFO	52.203-17	Contractor Employee Whistleblower Rights. (NOV 2023)
RFO	52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)
RFO	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS. (JUN 2020) (Deviation NOV 2025)
RFO	52.204-13	SYSTEM FOR AWARD MANAGEMENT-MAINTENANCE. (OCT 2018) (Deviation NOV 2025)
RFO	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED. (JAN 2025) (Deviation NOV 2025)
RFO	52.215-2	AUDIT AND RECORDS-NEGOTIATION. (JUN 2020) (Deviation NOV 2025)

Clause Database	Clause Number	Clause Title
RFO	52.215-8	ORDER OF PRECEDENCE-UNIFORM CONTRACT FORMAT. (OCT 1997) (Deviation NOV 2025)
RFO	52.215-10	Price Reduction for Defective Certified Cost or Pricing Data. (AUG 2011)
RFO	52.215-12	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA. (JUN 2020) (Deviation NOV 2025)
RFO	52.215-14	Integrity of Unit Prices. (NOV 2021)
RFO	52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS. (OCT 2010) (Deviation NOV 2025)
RFO	52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS. (JUL 2005) (Deviation NOV 2025)
RFO	52.215-19	NOTIFICATION OF OWNERSHIP CHANGES. (OCT 1997) (Deviation NOV 2025)
RFO	52.215-21	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA-MODIFICATIONS. (NOV 2021) (Deviation NOV 2025)
RFO	52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS. (JAN 2025) (Deviation NOV 2025)
RFO	52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN. (JAN 2025) (Deviation NOV 2025)
RFO	52.219-14	LIMITATIONS ON SUBCONTRACTING. (OCT 2022) (Deviation NOV 2025)
RFO	52.219-16	LIQUIDATED DAMAGES-SUBCONTRACTING PLAN. (SEP 2021) (Deviation NOV 2025)
RFO	52.222-3	Convict Labor. (JUN 2003)
RFO	52.222-35	EQUAL OPPORTUNITY FOR VETERANS. (JUN 2020) (Deviation NOV 2025)
RFO	52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES. (JUN 2020) (Deviation NOV 2025)
RFO	52.222-37	EMPLOYMENT REPORTS ON VETERANS. (JUN 2020) (Deviation NOV 2025)
RFO	52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (DEC 2010)
RFO	52.222-50	COMBATING TRAFFICKING IN PERSONS. (OCT 2025) (Deviation NOV 2025)
RFO	52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION. (JAN 2025) (Deviation NOV 2025)
RFO	52.225-1	BUY AMERICAN-SUPPLIES (OCT 2022) (Deviation NOV 2025)
RFO	52.227-1	Authorization and Consent. (JUN 2020)

Clause Database	Clause Number	Clause Title
RFO	52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement. (JUN 2020)
RFO	52.227-11	Patent Rights-Ownership by the Contractor. (MAY 2014)
RFO	52.227-14	Rights in Data-General. (MAY 2014)
RFO	52.229-3	Federal, State, and Local Taxes. (FEB 2013)
RFO	52.229-4	Federal, State, and Local Taxes (State and Local Adjustments). (FEB 2013)
RFO	52.232-1	Payments. (APR 1984)
RFO	52.232-2	Payments Under Fixed-Price Research and Development Contracts. (APR 1984)
RFO	52.232-8	Discounts for Prompt Payment. (FEB 2002)
RFO	52.232-9	Limitation on Withholding of Payments. (APR 1984)
RFO	52.232-11	Extras. (APR 1984)
RFO	52.232-17	Interest. (MAY 2014)
RFO	52.232-23	Assignment of Claims. (MAY 2014)
RFO	52.232-25	Prompt Payment. (JAN 2017)
RFO	52.232-33	Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)
RFO	52.232-39	Unenforceability of Unauthorized Obligations. (JUN 2013)
RFO	52.233-1	DISPUTES. (MAY 2014) (Deviation NOV 2025)
RFO	52.233-3	PROTEST AFTER AWARD. (AUG 1996) (Deviation NOV 2025)
RFO	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM. (OCT 2004) (Deviation NOV 2025)
RFO	52.242-13	Bankruptcy. (JUL 1995)
RFO	52.243-1	CHANGES-FIXED-PRICE. (AUG 1987) (Deviation JUL 2025) - ALTERNATE I (APR 1984) (Deviation JUL 2025)
RFO	52.243-1	CHANGES-FIXED-PRICE. (AUG 1987) (Deviation JUL 2025) - ALTERNATE V (APR 1984) (Deviation JUL 2025)
RFO	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (OCT 2025) (Deviation NOV 2025)
RFO	52.246-23	Limitation of Liability. (FEB 1997)
RFO	52.246-25	Limitation of Liability - Services. (FEB 1997)
RFO	52.249-2	Termination for Convenience of the Government (Fixed-Price). (APR 2012)
RFO	52.249-4	Termination for Convenience of the Government (Services) (Short Form). (APR 1984)
RFO	52.249-8	Default (Fixed-Price Supply and Service). (APR 1984)
RFO	52.249-9	Default (Fixed-Price Research and Development). (APR 1984)
RFO	52.253-1	COMPUTER GENERATED FORMS. (JAN 1991) (Deviation NOV 2025)
HHSAR	352.203-70	Anti-Lobbying. (DEC 2015)

Clause Database	Clause Number	Clause Title
HHSAR	352.222-70	Contractor Cooperation in Equal Employment Opportunity Investigations. (DEC 2015)
HHSAR	352.227-70	Publications and Publicity. (DEC 2015)
HHSAR	352.237-75	Key Personnel. (DEC 2015)

ARTICLE 2. AUTHORIZED SUBSTITUTION OF CLAUSES

Any authorized substitutions and/or modifications other than the General Clauses which will be based on the type of contract/Contractor will be determined during negotiations.

It is expected that the following substitution(s) will be made part of the resultant contract:

A. Authorized Substitutions REMOVE 52.229-3, ADD 52.229-4

FAR Clause 52.229-3, Federal, State and Local Taxes (Feb 2013) is deleted in its entirety, and FAR Clause 52.229-4, Federal, State and Local Taxes (State and Local Adjustments) (Feb 2013) is substituted therefor.

*B. Authorized Substitutions REMOVE 52.243-1 *A1, ADD 52.243-1 *A2*

Alternate I (Apr 1984) of FAR Clause 52.243-1, Changes, Fixed Price (Aug 1987), is hereby deleted in its entirety and Alternate II (Apr 1984) of FAR Clause 52.243-1, Changes, Fixed Price (Aug 1987), is substituted therefor.

C. Authorized Substitutions REMOVE 52.249-4, ADD 52.249-2

FAR Clause 52.249-4, Termination for Convenience of the Government (Services) (Short Form) (Apr 1984), is deleted in its entirety and FAR Clause 52.249-2, Termination for Convenience of the Government (Fixed Price) (Apr 2012) is substituted therefor.

D. Authorized Substitutions ADD 52.249-8

FAR Clause 52.249-8, Default (Fixed-Price Supply and Service) (Apr 1984) is applicable to this contract.

E. Authorized Substitutions REMOVE 52.249-9, ADD 52.249-5

FAR Clause 52.249-9, Default (Fixed-Price Research and Development) (Apr 1984) is deleted in its entirety and FAR Clause 52.249-5, Termination for Convenience of the Government (Educational and Other Nonprofit Institutions) (Aug 2016), is substituted therefore.

F. Authorized Substitutions ADD 52.249-9

FAR Clause 52.249-9, Default (Fixed-Price Research and Development) (Apr 1984) is applicable to this contract.

ARTICLE 3. ADDITIONAL CONTRACT CLAUSES IN FULL TEXT

Additional clauses other than those listed below which are based on the type of contract/Contractor shall be determined during negotiations. Any contract awarded from this solicitation will contain the following:

This contract incorporates the following clauses in full text.

FEDERAL ACQUISITION REGULATION (FAR) (48 CFR CHAPTER 1) CLAUSES

DEPARTMENT OF HEALTH AND HUMAN SERVICES ACQUISITION REGULATION (HHSAR) (48 CFR CHAPTER 3) CLAUSES

A. HHSAR 352.231-70 Salary Rate Limitation. (DEC 2015)

(a) The Contractor shall not use contract funds to pay the direct salary of an individual at a rate in excess of the Federal Executive Schedule Level II in effect on the date the funding was obligated.

(b) For purposes of the salary rate limitation, the terms "direct salary," "salary," and "institutional base salary," have the same meaning and are collectively referred to as "direct salary," in this clause. An individual's direct salary is the annual compensation that the Contractor pays for an individual's direct effort (costs) under the contract. Direct salary excludes any income that an individual may be permitted to earn outside of duties to the Contractor. Direct salary also excludes fringe benefits, overhead, and general and administrative expenses (also referred to as indirect costs or facilities and administrative costs). The salary rate limitation does not restrict the salary that an organization may pay an individual working under a Department of Health and Human Services contract or order; it merely limits the portion of that salary that may be paid with contract funds.

(c) The salary rate limitation also applies to individuals under subcontracts.

(d) If this is a multiple-year contract or order, it may be subject to unilateral modification by the Contracting Officer to ensure that an individual is not paid at a rate that exceeds the salary rate limitation provision established in the HHS appropriations act used to fund this contract.

(e) See the salaries and wages pay tables on the Office of Personnel Management Web site for Federal Executive Schedule salary levels.

(End of clause)

DEPARTMENT OF HEALTH AND HUMAN SERVICES ACQUISITION REGULATION (HHSAR) (48 CFR CHAPTER 3) CLAUSES

NIH LOCAL CLAUSES

ARTICLE 4. SMALL BUSINESS ADMINISTRATION - 8(a) PROGRAM CLAUSES

Any contract resulting from this RFP will contain the following Article:

SMALL BUSINESS ADMINISTRATION - 8(a) PROGRAM

This contract has been awarded in accordance with the program established in Section 8(a) of the Small Business Act (15 U.S.C. 637(a)) and the Partnership Agreement (PA) between the U.S. Small Business Administration (SBA) and the U.S. Department of Health and Human Services (HHS) effective October 23, 2012 until amended. The following clauses are hereby incorporated and made a part of this contract.

ARTICLE 5. SERVICE CONTRACT LABOR STANDARDS

Any contract awarded from this RFP will contain the following article:

SERVICE CONTRACT LABOR STANDARDS

This contract is subject to the Service Contract Labor Standards. The following clauses are hereby incorporated and made a part of this contract.

SECTION J - List of Documents, Exhibits and Other Attachments

Attachment Number	Title	Location
1.	Packaging and Delivery of Proposals for Use with the NIH electronic Contract Proposal Submission (eCPS) Website	https://ecps.nih.gov/
2.	Proposal Intent Response Sheet	https://oamp.od.nih.gov/sites/default/files/DGS/contracting-forms/intent.pdf
3.	Statement of Work	Attachment 3 - SOW
4.	Reporting Requirements	Attachment 4 – Reporting Requirement
5.	Section K - Representations, Certifications, and Other Statements of Offerors	https://oamp.od.nih.gov/sites/default/files/DGS/Reps_and_Certs/Section_K_Forms_4-24.pdf
6.	Additional Technical Proposal Instructions	Attachment 6
7.	Additional Business Proposal Instructions	Attachment 7
8.	Technical Proposal Price Sheet and Options Summary	Price Sheet Base and Options
9.	Summary of Related Activities	https://oamp.od.nih.gov/sites/default/files/DGS/contracting-forms/summary-related-activities.pdf
10.	HHS Section 508 Product Assessment Template	Attachment 10
11.	Proposal Summary and Data Record, NIH-2043	https://oamp.od.nih.gov/sites/default/files/DGS/contracting-forms/NIH2043.pdf
12.	Small Business Subcontracting Plan	Attachment 12
13.	Offeror's Points of Contact	https://oamp.od.nih.gov/sites/default/files/DGS/contracting-forms/point-of-contact.pdf
14.	Disclosure of Lobbying Activities	https://apply07.grants.gov/apply/forms/readonly/SFLLL_2_0-V2.0.pdf
15.	NIH(RC)-2, Invoice Instructions for NIH Fixed Price Contracts	https://oamp.od.nih.gov/sites/default/files/DGS/NIH(RC)2%20Final.pdf
16.	Privacy Act System of Records	https://www.gsa.gov/reference/gsa-privacy-program/systems-of-records-privacy-act
17.	Commitment to Protect Non-Public Information Contractor Agreement	https://ocio.nih.gov/sites/external/files/2024-01/Nondisclosure04082020.pdf
18.	Roster of Employees Requiring Suitability Investigations	https://ocio.nih.gov/sites/external/files/2024-01/SuitabilityRoster_10-15-12.xlsx
19.	Employee Separation Checklist	https://ocio.nih.gov/sites/external/files/2024-01/Emp-sep-checklist.pdf
20.	Electronic Invoicing Instructions	https://oalm.od.nih.gov/IPP

SECTION K - Representations, Certifications, and Other Statements of Bidders

1. Go to the System for Award Management (SAM) and complete the Representations and Certifications. The SAM website may be accessed at: <https://www.sam.gov/content/home> ; and
2. Complete and INCLUDE as part of your BUSINESS PROPOSAL: SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS which is included as an Attachment in Section J-LIST OF ATTACHMENTS, SOLICITATION ATTACHMENTS of this solicitation. If you are unable to access this SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS electronically, you may request a copy from the Contracting Officer identified on the cover page of this solicitation.
3. FAR Clause 52.204-19 Incorporation by Reference of Representations and Certifications (December 2014). The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract. (End of clause).

SECTION L - Instructions, Conditions, and Notices to Bidders

1. GENERAL INFORMATION

INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION (NOV 2021)

(a) *Definitions.* As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations.* If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) Unless other methods (*e.g.*, electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show—

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

(i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in

the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at [52.215-5](#), Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR [52.225-17](#), Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [*insert numbers or other identification of sheets*]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR [15.306\(a\)](#)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

Alternate I (Oct1997). As prescribed in [15.209](#) (a)(1), substitute the following paragraph (f)(4) for paragraph (f)(4) of the basic provision:

(f)(4) The Government intends to evaluate proposals and award a contract after conducting discussions with offerors whose proposals have been determined to be within the competitive range. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint.

Alternate II (Oct1997). As prescribed in [15.209](#) (a)(2), add a paragraph (c)(9) substantially the same as the following to the basic clause:

(c)(9) Offerors may submit proposals that depart from stated requirements. Such proposals shall clearly identify why the acceptance of the proposal would be advantageous to the Government. Any deviations from the terms and conditions of the solicitation, as well as the comparative advantage to the Government, shall be clearly identified and explicitly defined. The Government reserves the right to amend the solicitation to allow all offerors an opportunity to submit revised proposals based on the revised requirements.

NAICS CODE AND SIZE STANDARD

Note: The following information is to be used by the offeror in preparing its Representations and Certifications (See Section K of this RFP), specifically in completing the provision entitled, SMALL BUSINESS PROGRAM REPRESENTATION, FAR Clause 52.219-1.

1. The North American Industry Classification System (NAICS) code for this acquisition is 541714.
2. The small business size standard is 1000 employees.

THIS REQUIREMENT IS NOT SET-ASIDE FOR SMALL BUSINESS. However, the Federal Acquisition Regulation (FAR) requires in every solicitation, (except for foreign acquisitions) the inclusion of the North American Industry Classification System (NAICS) Code and corresponding size standard which best describes the nature of the requirement in the solicitation.

SECTION M - Evaluation Factors for Award

A. TECHNICAL EVALUATION FACTORS

The evaluation criteria are used by the technical evaluation committee when reviewing the technical proposals. The criteria below are listed in the order of relative importance with weights assigned for evaluation purposes. Subfactors are considered to be of equal importance.

OFFERORS AND REVIEWERS ARE ADVISED TO REFER TO - Additional Technical Proposal Instructions – OF THIS SOLICITATION PACKAGE FOR GUIDANCE AND INFORMATION RELATED TO THE PREPARATION OF TECHNICAL PROPOSALS.

CRITERIA	WEIGHT
Criteria 1: TECHNICAL PLAN/APPROACH	50
Appropriateness, feasibility, and adequacy of the proposed technical plan/approach for accomplishing the tasks outlined in the Statement of Work (SOW) and the overall objectives of the solicitation. In particular, the offeror must demonstrate through detailed documentation its technical plan/approach specifically related to the 4 core requirements described in the SOW and briefly summarized as follows:	
A. Chemical Library Design: Adequacy and appropriateness of the proposed scientific and technical approaches for generating new Library Ideas and developing them into ILPPs consistent with the ILPP requirements described in the SOW and Reporting Requirements sections.	
B. Compound Synthesis: Adequacy and appropriateness of the proposed compound synthesis plan to provide the types of libraries described in the SOW, including access to a breadth of small-molecule chemotypes, purification and analysis of intermediates and products, route design for efficient library production and reporting of procedures and results.	
C. Compound Testing: Adequacy and appropriateness of the proposed compound testing plan to deliver the required MICs of each product compound.	
D. Compound Management: Adequacy and appropriateness of the proposed scientific and technical approaches for the storage, handling, and distribution of chemical libraries.	
Criteria 2: TECHNICAL PERSONNEL	20
Appropriateness and adequacy of the education, training, experience, expertise, and proposed levels of effort of the Principal Investigator and scientific and technical staff including subcontractors as demonstrated by:	
A. Documented experience and competence in projects of similar scope and complexity.	
B. Documented qualifications, knowledge, experience, education, competence, and availability of the PI and other key scientific and support personnel in high-throughput chemical synthesis of broad range of anti-infective compound classes, and in the testing, evaluation, storage and distribution of chemical libraries, on the throughput scale as described in the SOW and the overall objectives of the solicitation.	
C. The responsibilities and level of effort of all proposed staff of the Offeror and any proposed subcontractors are appropriate mix of staff, and expertise to carry out the SOW and the overall objectives of the solicitation.	
Criteria 3: PROJECT MANAGEMENT	20
Appropriateness and adequacy of the Project Management Plan in terms of staffing, organizational structure, lines of authority, management of subcontracts, tracking of project activities, monitoring progress and	

timelines, communication with stakeholders, and timely compliance with reporting requirements of the contract.	
Criteria 4: FACILITIES, EQUIPMENT, RESOURCES	10
Appropriateness and adequacy of facilities, equipment, space and other resources to deliver each of the four core requirements of the SOW.	
Total Possible Weight:	100

Other Evaluation Factors:

1. Price
2. Past Performance
3. Subcontracting Program Evaluation Criteria

Special Considerations:

1. Evaluation of Electronic and Information Technology Accessibility – Section 508

PRICE EVALUATION

Offeror(s) price proposal will be evaluated for reasonableness. For a price to be reasonable, it must represent a price to the government that a prudent person would pay when consideration is given to prices in the market. Normally, price reasonableness is established through adequate price competition, but may also be determined through cost and price analysis techniques as described in FAR 15.404.

EVALUATION OF OPTIONS

It is anticipated that any contract(s) awarded from this solicitation will contain option period(s) and option quantity(ies).

In accordance with FAR Clause 52.217-5, Evaluation of Options, (July 1990), the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement, except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests. Evaluation of options will not obligate the Government to exercise the option(s).

PAST PERFORMANCE FACTOR

Offeror's past performance information will be evaluated subsequent to the technical evaluation. However, this evaluation will not be conducted on any offeror whose proposal is determined to be technically unacceptable.

The evaluation will be based on information obtained from references provided by the offeror, other relevant past performance information obtained from other sources known to the Government, and any information supplied by the offeror concerning problems encountered on the identified contracts and corrective action taken.

The Government will assess the relative risks associated with each offeror. Performance risks are those associated with an offeror's likelihood of success in performing the acquisition requirements as indicated by that offeror's record of past performance.

The assessment of performance risk is not intended to be the product of a mechanical or mathematical analysis of an offeror's performance on a list of contracts but rather the product of subjective judgment by the Government after it considers all available and relevant information.

When assessing performance risks, the Government will focus on the past performance of the offeror as it relates to all acquisition requirements, such as the offeror's record of performing according to specifications, including standards of good workmanship; the offeror's record of controlling and forecasting costs; the offeror's adherence to contract schedules, including the administrative aspects of performance; the offeror's reputation for reasonable and cooperative behavior and commitment to customer satisfaction; and generally, the offeror's business-like concern for the interest of the customer.

The Government will consider the currency and relevance of the information, source of the information, context of the data, and general trends in the offeror's performance.

The lack of a relevant performance record may result in an unknown performance risk assessment, which will neither be used to the advantage nor disadvantage of the offeror.

SUBCONTRACTING PROGRAM EVALUATION FACTORS

The offeror's proposed Small Business Subcontracting Plan will be evaluated to determine whether it represents the maximum practicable opportunity for subcontracting. Because the offeror's record of previous performance in carrying out the intent of the subcontracting program will be considered as a significant sub-factor, each offeror is encouraged to submit subcontracting plans and documentation that demonstrates their prior corporate support for small, small disadvantaged, women-owned small, HUBZone small, veteran-owned small, and service-disabled veteran-owned small business suppliers.

If offers are received from both large and small businesses, the small business offerors shall receive the maximum possible number of points for this factor.

EVALUATION OF ELECTRONIC AND INFORMATION TECHNOLOGY ACCESSIBILITY - SECTION 508

The offeror's proposal must demonstrate compliance with the "Electronic and Information Technology Accessibility Provisions" set forth by the Architectural and Transportation Barriers Compliance Board (also referred to as the "Access Board") in 36 CFR part 1194 for all electronic and information technology (EIT) products and services developed, acquired, maintained, or used under this contract/order, including EIT deliverables such as electronic documents and reports.

If your proposal does not include a completed HHS "Section 508 Product Assessment Template" (hereafter referred to as the "Template") which demonstrates that EIT products and services proposed support applicable Section 508 accessibility standards, or, if the completed "Template" included in your proposal is considered "noncompliant," and the Government includes your proposal in the competitive range (for competitive proposals), or if the Government holds discussions with the selected source (for sole source acquisitions), you will be afforded the opportunity to further discuss, clarify or modify the "Template" during discussions and in your Final Proposal Revision (FPR). If your "Template" is still considered "noncompliant" by the Government after discussions, your proposal may not be considered further for award.